

BIS (HALLMARKING) REGULATIONS, 2018

STATUTORY REGULATION FOR PRECIOUS METALS (GOLD & SILVER)

Framed under Section 39 of the BIS Act 2016, these regulations govern the registration of jewellers, recognition and auditing of Assaying and Hallmarking Centres (AHC), hallmarking fees, and consumer compensation protocols.

REGULATION 3: REGISTRATION OF JEWELLERS

- Any jeweller dealing in gold and silver jewellery/artefacts can obtain registration through the Manakonline digital portal.
- Registration is granted automatically without prior factory/outlet inspection.
- Zero registration fee for micro enterprises having turnover below Rs 5 Crore.
- Registration is granted for a lifetime validity with no periodic renewal required.

REGULATION 5 & 6: RECOGNITION OF ASSAYING & HALLMARKING CENTRES (AHC)

Assaying and Hallmarking Centres must comply with IS 15820 (General requirements for competence of AHC) and maintain ISO/IEC 17025 accredited fire assay testing apparatus, X-ray Fluorescence (XRF) analyzers, and computerized laser marking stations.

REGULATION 9: STATUTORY HALLMARKING CHARGES

Precious Metal Article	Official Hallmarking Charge per Article	Minimum Batch Consignment Fee
Gold Jewellery / Artefacts	Rs 45.00 per article (+ GST)	Rs 200.00 per consignment lot
Silver Jewellery / Artefacts	Rs 35.00 per article (+ GST)	Rs 150.00 per consignment lot

REGULATION 12: CONSUMER PROTECTION AND COMPENSATION FORMULA

If a hallmarked jewellery piece bought by a consumer is tested at any BIS-recognized AHC and found to be of lower purity than engraved:

Important Note: *Statutory Compensation Payable by Jeweller = (Difference in Purity × Weight of Article in grams × Prevailing Gold Rate) + (3 × Testing Fee paid by Consumer).*

The jeweller is obligated to pay compensation within 30 days of the verified test report, failing which jeweller registration is suspended and prosecution initiated under Section 29.